

District-Chattogram.

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION,
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Toufiq Inam

Civil Revision No. 1157 of 2014.

Sultana Razia and others.

.....Pre-emptors-Appellants-Petitioners.

-Versus-

Mohammad Ali and others.

..... Pre-emptee-Respondents-Opposite Parties.

Mr. Mohammad Redwanul Karim, Advocate.

..... For the Pre-emptors-Appellants-Petitioners.

Mr. A. M. Showkatul Huq, Advocate

.....For the Pre-emptee-Respondents-Opposite Parties.

**Heard On: 30.06.2025; 02.07.2025;03.07.2025;
07.07.2025; 09.07.2025.**

And

Date of Judgment: 15th Day of July 2025.

Md. Toufiq Inam, J.

This Rule was issued upon the opposite Party to show cause as to why the appellate judgment and order dated 02.10.2013 passed in Miscellaneous Appeal No. 94 of 2010 by the learned joint District Judge, 1st Court, Chottogram affirming the judgment and order dated 29.04.2010 passed by the learned Senior Assistant Judge, 5th Court, Chottogram in Miscellaneous Cases Nos. 08 of 2005 dismissing Miscellaneous Case of pre-emption filed under section 24 of the Non-Agricultural and Tenancy Act.

The petitioner as pre-emptor, claiming to be a co-sharer in the holding, instituted the pre-emption case against the opposite party-purchaser, who is a stranger to the tenancy. It is claimed that the

petitioner acquired knowledge of the impugned sale on 08.12.2004, when the purchaser came to fish in the case pond. The case was filed within four months from that alleged date of knowledge.

The purchaser-opposite parties contested the case asserting that the sale in question was effected through Kabala No 1994 which was registered on 25.09.2001 and that they took possession of the land accordingly. They further stated that the case pond was filled with earth at their expense and was converted into *bhiti* land suitable for construction. Following that they completed mutation in the year 2003 and undertook substantial development work on the land including construction and installation of electricity connections.

The opposite parties contended that given the close proximity of the petitioner's residence and the obvious nature of the construction activities it is not believable that the petitioner remained unaware of the transfer for such a long period.

Upon trial and after considering the pleadings and evidence on record, the trial court dismissed the pre-emption case. Feeling aggrieved, the pre-emptor preferred an appeal. The learned appellate court, upon hearing both sides, concurred with the trial court and dismissed the appeal.

Being aggrieved by the same, the pre-emptor as petitioner has challenged the said judgment and order by filing the instant Revisional application invoking section 115 (1) of the Code of Civil Procedure and obtained the present Rule.

In support of the Rule, Mr. Mohammad Redwanul Karim, the learned Advocate for the petitioner submits that the petitioner is an undisputed co-sharer in the holding, and the purchaser is a complete stranger.

He argues that the pre-emptor came to know of the sale only in December 2004, when the purchaser first entered the pond, which is part of the case land. The delay in knowledge is explained on the ground that no possession change occurred earlier, and no visible development was made at the time of sale.

Mr. Karim contends that the courts below failed to properly evaluate the date of actual knowledge under section 24(2). He further argues that the burden was on the purchaser-opposite party to prove earlier knowledge, which they failed to do conclusively.

On the other hand, Mr. A. M. Showkatul Huq, the learned Advocate for the opposite parties supports the concurrent decisions of the courts below and submits that the sale was executed and registered in 2001; Mutation was done in 2003, and a separate joma was opened in the name of the purchaser; The purchaser developed the suit land, spending Tk. 6–7 lakh, built structures thereon, and obtained an electricity meter in his own name.

He submits that the pre-emptor and the purchaser reside within the same homestead, and their houses are separated by a mere 10–12 yards. In cross-examination, PW-1 (attorney of the pre-emptor), candidly admitted: “There are houses on three sides of the pond except on the north.” He further stated, “I go to the pond every day, but I do not remember when I last went.” PW-1 also admitted, “My homestead is to the north and east of the pond,” and that “the suit pond is adjacent to the house of the pre-emptor.” These admissions clearly establish that the pre-emptor-petitioner lived in close proximity to the case land and had ample opportunity to observe any material changes taking place thereon. The appellate court, therefore, rightly concluded that the plea of first knowledge in December 2004 is not credible.

Having heard the learned Advocates for both sides and upon careful perusal of the judgments and orders of the courts below, as well as the evidence on record, this Court now proceeds to render its decision.

It appears that the courts below based on oral and documentary evidence, made the following key factual findings:

1. The petitioner's homestead is adjacent to the suit pond;
2. The pond is surrounded by houses on three sides, including that of the petitioner;
3. Following mutation in 2003, the purchaser carried out substantial development works on the suit land, including earth filling, boundary demarcation, and construction;
4. An electricity meter was obtained in the purchaser's name for a dwelling house situated on the suit land;
5. PW-1 admitted to visiting the pond daily and being well acquainted with the area;
6. The pre-emptor's claim of acquiring knowledge of the sale in December 2004 was found to be implausible;
7. The suit, filed on 02.02.2005, was consequently held to be barred by limitation.

There is no dispute that the pre-emptor is a co-sharer in the suit holding and that the purchaser is a stranger to the tenancy. These facts satisfy the foundational requirement under Section 24 of the Non-Agricultural Tenancy Act, 1949. The legal entitlement to pre-empt is, thus, not in doubt. The central controversy revolves around the issue of limitation and the date of knowledge.

Section 24(2) of the Act prescribes a strict limitation period of four months from the date on which the pre-emptor acquired actual knowledge of the transfer. It is now a settled principle that registration of a deed does not, by itself, constitute constructive notice. The burden squarely lies on the pre-emptor to affirmatively prove the

specific date of knowledge with cogent, consistent, and credible evidence.

In the present case, PW-1, the sole witness for the pre-emptor, made the following depositions:

- 1) “There are houses on three sides of the pond except on the north.”
- 2) “My homestead is to the north and east of the suit pond.”
- 3) “I go to that pond every day.”
- 4) “I cannot say how many houses are built near the pond.”
- 5) “The suit pond is adjacent to the house of the pre-emptor.”

These admissions clearly establish that the pre-emptor-petitioner lived in close proximity to the case land and had ample opportunity to observe any material changes taking place thereon. These statements, taken together, directly undermine the pre-emptor’s claim of ignorance. His clear view of the surrounding area, render it highly improbable that he remained unaware of visible developments carried out by the purchaser for over three years.

Moreover, the testimonies of OPW-1 and OPW-2 remain unshaken on the point that the purchaser visibly developed the land through earth filling, boundary construction, expenditure of approximately Tk. 6–7 lakh, and installation of an electricity meter in his name. These acts of open and unequivocal possession provide strong grounds for inferring constructive knowledge. Given the pre-emptor's close proximity to the suit land, it is reasonable to conclude that he either had or ought to have had actual knowledge of the sale well before the date he alleges.

The plea that the pre-emptor first became aware of the sale on 08.12.2004 appears to be an afterthought, crafted to bring the suit within the limitation period. This assertion lacks support from any independent witness or corroborative material. Furthermore, the

absence of any protest, inquiry, or legal step prior to filing the suit further weakens the claim and raises serious doubts about its veracity. Courts have consistently held that unexplained or implausible delay is fatal in pre-emption cases, particularly when the statute imposes a rigid limitation period.

This Court, exercising its revisional jurisdiction under Section 115 of the Code of Civil Procedure, is confined to examining errors of jurisdiction, illegality, or material irregularity. The concurrent findings of fact by the courts below are based on a proper appreciation of evidence, including key admissions and the conduct of the parties. These findings are neither perverse nor unreasonable. No error of law or procedural irregularity has been shown to justify interference.

In view of the foregoing discussion and findings, this Court finds no merit in the Rule.

Accordingly, the Rule is hereby discharged;

The judgments and orders of the courts below are hereby affirmed.

There shall be no order as to costs.

Let the Lower Court Record, along with a copy of this judgment, be transmitted to the court below at once for information and necessary action

(Justice Md. Toufiq Inam)